

02:00 PM **LINE 9**

25-CIV-09970

NYA LAVEAU VS. ASN TANFORAN CROSSING II LLC

NYA LAVEAU
ASN TANFORAN CROSSING II LLC

PRO SE
WILLA MANKINS

Defense Demurrer to Plaintiffs Complaint

TENTATIVE RULING:

Defendant ASN Tanforan Crossing II LLC, aka Avalon Bay San Bruno's unopposed Demurrer to plaintiff Nya Laveau's Complaint filed on December 22, 2025 is **SUSTAINED WITH leave to amend** pursuant to Code of Civil Procedure, section 430.10 subdivisions (e) & (f).

If plaintiff intends to file a First Amended Complaint, she must do so within ten (10) days of notice of entry of this order.

Plaintiff in pro per Nya Laveau's initial pleading states that plaintiff "has the burden of proving each essential element of her ANSWER in response to UNLAWFUL DETAINERS filed by DEFENDANT, ASN CROSSING II LLC AKA AVALON BAY SAN BRUNO on 03/21/25 (25-UDL00466), 05/07/25 (25-UDL-00675), and 09/09/25 (25-UDL-01252) ..." (Complaint, at p. 2:7-8.) Based on that language, and the "POINTS OF AUTHORITIES" in the document which addresses issues that appear pertinent to the referenced unlawful detainer actions, it is not clear whether plaintiff may have intended to file an answer or other responsive document in one or both of those cases, or whether the pleading is truly intended to be a complaint. Because the document was filed in initiation of this action, it is a complaint as a matter of legal procedure.

Defendant Tanforan demurs on the grounds that plaintiff has failed to state a cause of action upon which relief can be granted and that the pleading is uncertain.

A special demurrer for uncertainty should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which are to be met. (*People v. Lim* (1941) 18 Cal.2d 872.) A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612.) Here, however, plaintiff's Complaint is not merely ambiguous but is so uncertain as to whether it is even alleging one or more causes of action that defendant cannot reasonably respond.

The special demurrer for uncertainty is accordingly **SUSTAINED with leave to amend** pursuant to Code of Civil Procedure, section 430.10, subdivision 430.10, subdivision (f).

With respect to defendant's general demurrer, plaintiff's Complaint does not articulate any individual causes of action and the underlying facts alleged are couched as being alleged in support of defenses to complaints in other cases.

The general demurrer for failure to state facts sufficient to constitute a cause of action is accordingly **SUSTAINED with leave to amend** pursuant to Code of Civil Procedure, section 430.10, subdivision 430.10, subdivision (e).

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 10**

25-CIV-09970

NYA LAVEAU VS. ASN TANFORAN CROSSING II LLC

NYA LAVEAU
ASN TANFORAN CROSSING II LLC

PRO SE
WILLA MANKINS

Defense Motion to Strike

TENTATIVE RULING:

Defendant ASN Tanforan Crossing II LLC, aka Avalon Bay San Bruno's unopposed Motion to Strike Plaintiff Nya Laveau's Complaint filed December 22, 2025 is **DENIED as MOOT** in light of the tentative ruling sustaining defendant's concurrently filed Demurrer to the same pleading.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.
